

HOUSE BILL 1422

By Moody

AN ACT to amend Chapter 120 of the Private Acts of 1915; as amended and rewritten by Chapter 21 of the Private Acts of 2009; Chapter 44 of the Private Acts of 2018 and Chapter 3 of the Private Acts of 2019; and any other acts amendatory thereto, relative to the Town of Mason.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 120 of the Private Acts of 1915, as amended and rewritten by Chapter 21 of the Private Acts of 2009, Chapter 44 of the Private Acts of 2018, Chapter 3 of the Private Acts of 2019, and any other acts amendatory thereto, is amended by deleting Sections 12-14 and substituting instead:

SECTION 12.

The board may appoint a Town Administrator who shall be under the control and direction of the board. The Town Administrator shall report and be responsible to the board. The board may, by ordinance, require the Town Administrator to perform any or all the following duties:

- (1) Administer the business of the Town;
- (2) Make recommendations to the board for improving the quality and quantity of public services to be rendered by the officers and employees to the inhabitants of the Town;
- (3) Keep the board fully advised as to the conditions and needs of the Town;
- (4) Report to the board the condition of all property, real and personal, owned by the Town and recommend repairs or replacements as needed;
- (5) Recommend to the board and suggest the priority of programs or projects involving public works or public improvements that should be undertaken by the Town;

(6) Have general supervision of all the employees of the Town and see that the ordinances and provisions of the charter are observed;

(7) Recommend specific personnel positions, as may be required for the needs and operations of the Town, and propose personnel policies and procedures for approval of the board; and

(8) Perform such other duties as may from time to time be designated or required by the board.

The Town government shall be organized into such departments and offices as shall be provided by ordinance. The Town Administrator may determine by executive action the functions and duties of all departments and offices. The Town Administrator may establish, abolish, merge, or consolidate offices, positions of employment, and departments; may provide that the same person shall fill any number of offices and positions of employment; and may transfer or change the functions and duties of offices, positions of employment, and departments. The appointment and promotion of employees of the Town of Mason shall be on the basis of merit, considering technical knowledge required to perform satisfactorily the work, experience in the particular or similar line of work, and administrative or supervisory qualifications. The Town Administrator shall establish a system of personnel administration to provide for the appointment of all employees of the Town of Mason. The Town Administrator, with ratification of the majority of the Board, shall appoint the Town Attorney, department heads, and such other positions as the Town Administrator shall deem necessary for the proper and efficient administration of government for the Town of Mason.

SECTION 13. All contracts and bonds of the corporation shall be signed by the Town Administrator and countersigned by the Recorder under the seal of the corporation upon authority given by the Board at one of its meetings. All disbursements shall be made by checks signed by the Town Recorder and by the Town Administrator. The

Board may designate other officers to sign such checks in the absence or disability of the Town Administrator or Town Recorder.

SECTION 14. The Mayor, as a member of the board, may make motions and shall have a vote on all matters coming before the board.

SECTION 2. Chapter 120 of the Private Acts of 1915, as amended and rewritten by Chapter 21 of the Private Acts of 2009, Chapter 44 of the Private Acts of 2018, and any other acts amendatory thereto, is amended by deleting the second paragraph of Section 19 and substituting instead:

Ordinances shall be signed by the Mayor, although the Mayor's signature is not required for the ordinance to take effect. Such ordinances shall be immediately taken charge of by the Town Recorder, numbered, placed in an ordinance book, and there authenticated by the signature of the Town Recorder and filed and preserved.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the Town of Mason. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 3.